

WRITTEN SUBMISSIONS · 9 FEB 1998

Hearing submissions — part 2

TYPE	DATE	PARTIES
Pleadings / procedural document	9 Feb 1998	Bernard Collorafi v. McDonald's France

SUMMARY SHEET

Written submissions — Paris Commercial Court, hearing of 9 February 1998

Overview: written submissions filed on behalf of the companies SEBOL, B et O and Les Pins (voluntary intervener) and of Mr Bernard Collorafi, by Maître Jean-Paul Clément (counsel), before the 1st chamber of the Paris Commercial Court, directed against McDonald's France.

Key points

The brief recalls that the parties filing it had summoned McDonald's France in order to have it held that the company had not performed its obligations in good faith and to obtain compensation, claiming in particular 30 million francs for SEBOL, 5 million for B et O and 10,350,000 francs for Mr Collorafi, plus article 700. It traces the proceedings: McDonald's application for eviction and cessation of operation had been rejected by order of 15 January 1998 ("no grounds for summary proceedings"), McDonald's having then summoned Les Pins and requested joinder. On the merits, the written submissions invoke article 1134, paragraph 3, of the Civil Code and the judgments of the Court of Cassation of 1 December 1995, argue that the difficulties in paying the fees result from the openings, in close succession, of competing restaurants decided by McDonald's, and raise the maxim *nemo auditur propriam turpitudinem allegans*.

Significance

A substantive document of the first stage of the litigation: it sets out the argument of McDonald's contractual bad faith, the basis of the franchisees' claim for compensation.

Sheet generated automatically from the transcription of the document.

Source: bernardcollorafi.org/en/documents/written-submissions-collorafi-bad-faith-mcdonalds-paris-commercial-court-p2-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.